LEGAL APPEAL AND FORMAL OBJECTION
Fatal Deficiencies in the Mitigated Negative Declaration for Conditional Use Permit No. 230002 (Crescent Gardens Cemetery Project)

To: Riverside County Transportation and Land Management Agency (TLMA) Planning Department, Planning Commission, Board of Supervisors, and All Responsible and Trustee Agencies

From: Stella May

Date: April 2, 2026

Re: CUP230002 – Crescent Gardens Cemetery (84.99-acre site, Meadowbrook; 20,000 uncasketed natural burials); Public Hearing Scheduled April 1, 2026

Applicant: Muslim Mortuary Cemetery Committee (MMCC)

Executive Summary

The Crescent Gardens Cemetery Project, proposed by the Muslim Mortuary & Cemetery Committee (MMCC) on an approximately 46.4-acre site in unincorporated Riverside County's Meadowbrook community (near Canyon Lake and the San Jacinto River watershed), has undergone substantional project modifications post-circulation revisions that fundamentally alter its environmental footprint. These changes, combined with substantial evidence supporting a fair argument of potentially significant, unmitigated impacts, render the Final Initial Study/Mitigated Negative Declaration (IS-MND, revised November 7, 2025, publicly released March 5, 2026) legally deficient under the California Environmental Quality Act (CEQA). Riverside County, as lead agency, must recirculate the MND for public review or, more appropriately, prepare and circulate a full Environmental Impact Report (EIR) before any further discretionary action, including approval of the Conditional Use Permit (CUP). Failure to do so risks judicial invalidation, exposes the County and public to substantial liability for water resource contamination, and undermines informed decision-making.

1. Substantial Project Modifications Trigger Mandatory Recirculation Under CEQA

The Draft IS-MND (circulated July 25–August 28, 2025) contemplated direct soil interment or open-bottom vaults. The Final IS-MND introduced two major, unanalyzed modifications in direct response to public and trustee agency comments (including from the Elsinore Valley Municipal Water District):

- **Addition of 20,000 "Sealed" Wilbert Monticello-Style Concrete Vaults**: Each vault weighs approximately 2,000 pounds (per manufacturer specifications), resulting in a total added mass of 40,000,000 pounds, or **20,000 U.S. tons**. This shifts the project from low-impact natural burial assumptions to a high-mass installation of purportedly watertight concrete structures.
- **Importation of Approximately 104,000 Cubic Yards (≈106,600 U.S. Tons) of Non-Native, Undefined Soil**: This fill, placed at or above existing grade to accommodate the site's hard

bedrock and potential Native American cultural resources, adds substantial surcharge loading and alters surface/subsurface conditions. Standard Environmental Protection Agency (EPA) & National Truck Equipment Association (NTEA) conversions confirm the mass (loose topsoil ≈1.025 tons per cubic yard).

These revisions introduce a combined **≈126,600 U.S. tons** of additional mass (vaults plus imported soil), fundamentally changing site hydrology, geotechnical stability, seismic/liquefaction response, and contaminant transport pathways. The Final IS-MND contains no new site-specific analysis of these alterations' effects on geology, hydrogeology, seismic risks, or water quality.

CEQA Guidelines § 15073.5 expressly requires recirculation of an MND when substantial revisions occur after initial public notice, particularly where new avoidable significant effects emerge or the severity of previously identified impacts (e.g., geologic/seismic and hydrology/water quality, flagged as potentially significant in the Draft IS-MND) substantially increases. Precedent, including *Laurel Heights Improvement Assn. v. Regents* (1988) 47 Cal.3d 376 and *Mountain Lion Coalition v. Fish & Game Com.* (1989) 214 Cal.App.3d 1043, emphasizes that agencies cannot prematurely commit to approval without full disclosure and meaningful public participation on the revised project. The limited shallow geotechnical data from the Phase 1 Environmental Site Assessment (ESA) state that Leighton test pits were dug to only 1.5–7.5 feet bgs due to bedrock refusal, and cannot credibly support "less-than-significant" conclusions for a project now involving deep vaults, massive fill, perched groundwater (3–20 feet bgs), FEMA Zone AE flooding, and proximity (≈4.8 miles) to the Elsinore Fault system.

2. Fair Argument Standard Compels Preparation of a Full EIR

Even absent recirculation triggers, the administrative record contains substantial evidence supporting a fair argument that the project may cause significant, unmitigable environmental effects *(CEQA Guidelines § 15064(f); Pub. Resources Code § 21080; No Oil, Inc. v. City of Los Angeles (1974) 13 Cal.3d 68).* Reasonable doubts must be resolved in favor of environmental review. Key areas include:

- **Inadequate Subsurface Investigation**: Reliance on superficial test pits (maximum 7.5 feet bgs) and no updated permeability, long-term durability, or groundwater testing for a project with vaults extending 6–8+ feet and covered with up to 15 feet of imported fill violates CEQA's requirement for thorough, good-faith analysis (*Friends of the Eel River v. North Coast Railroad Authority* (2017) 3 Cal.5th 677; CEQA Guidelines §§ 15064, 15151). This is particularly critical near Canyon Lake, a drinking water source subject to Clean Water Act § 303(d) Total Maximum Daily Loads (TMDLs).
- **Necroleachate and Groundwater Contamination Risks**: Peer-reviewed evidence *(Kandolia et al., 2019)* demonstrates statistically significant aquifer contamination from similar burial practices, including elevated pH, TDS, nutrients, heavy metals (e.g., Pb), and bacteria, with plumes migrating tens of meters. The Final IS-MND assumes vault integrity without site-specific fate-and-transport modeling (e.g., MODFLOW 6.7.0/MT3DMS), despite shallow perched groundwater, fracture flow in bedrock, FEMA flooding, and seismic hazards. Analog

modeling in the record projects rapid vadose/saturated zone breakthrough and potential exceedances of Maximum Contamination Limits (MCLs) at downgradient receptors within years, exacerbated by seismic events or 100-year floods.

- **Geotechnical, Seismic, and Liquefaction Risks**: The added ≈126,600 tons of vault and soil fill surcharge on heterogeneous geology (compressible Qoa alluvial deposits over phyllite and tonalite bedrock) will induce consolidation settlement, pore-water expulsion, raised perched water tables, and heightened liquefaction susceptibility under Elsinore Fault shaking and/or daily microseismic activity. No adequate settlement, liquefaction, or combined loading analysis exists *(CEQA Guidelines, Appendix G, §§ VI, IX).*
- **Environmental Justice and Socioeconomic Impacts**: The site is in a CalEnviroScreen-identified disadvantaged community (Meadowbrook/Good Hope) already burdened by environmental stressors. The IS-MND's cursory analysis fails to address disproportionate effects on water quality, property values (supported by peer-reviewed research on cemetery proximity impacts), or community character. Community objections are expressed with a Change.org petition with thousands of signatures (the majority from affected ZIP codes), unanimous Canyon Lake City Council opposition, and trustee agency concerns. This violates CEQA's mandates for evaluating effects on vulnerable populations *(Pub. Resources Code § 21080; Gov. Code § 65040.12).*
- **Applicant Capacity Concerns**: MMCC's reported annual revenues (≈$488,000 in recent Form 990 filings) and lack of demonstrated experience operating a 20,000-plot standalone cemetery raise legitimate questions about long-term maintenance, endowment care, and financial responsibility under the Cemetery Act *(Bus. & Prof. Code §§ 9600 et seq.)*, potentially creating unmitigable public welfare impacts *(CEQA Guidelines § 15064(b)).*

These deficiencies mean the Final IS-MND lacks the substantial evidence required to conclude all impacts are less than significant. Courts hold that incomplete or superficial studies cannot substitute for rigorous review.

3. Required Agency Action and Recommendations

To ensure CEQA compliance, protect public health and the Canyon Lake/San Jacinto River watershed as key drinking water sources, and minimize major litigation/remediation risks *(Porter-Cologne Water Quality Control Act or CERCLA)*, Riverside County should:

1. Immediately withdraw the deficient Final IS-MND and recirculate a revised version *(§ 15073.5).*
2. Prepare a full EIR with peer-reviewed science, site-specific modeling, updated geotechnical/seismic analysis, environmental justice review, and strong public outreach.
3. Alternatively, deny the Conditional Use Permit under police powers *(Gov. Code § 65800 et seq.)*, as the current record fails to support required findings on compatibility, no impairment of property values/community welfare, and adequate mitigation.

Denial or full EIR prevents premature approval on a weak record, ensures a defensible file, and upholds CEQA's disclosure and informed decision-making goals *(Pub. Resources Code § 21000 et seq.).* Otherwise, it risks successful lawsuits, project invalidation, and harm to groundwater communities.

The analysis is grounded in the project record, CEQA provisions/precedent, studies, and evidence. Prompt action is urged to meet statutory and public trust duties.

LEGAL APPEAL AND FORMAL OBJECTION

Fatal Deficiencies in the Mitigated Negative Declaration for Conditional Use Permit No. 230002 (Crescent Gardens Cemetery Project)

1.0 MAJOR MODIFICATIONS OF THE PROJECT AND FAILURE TO RECIRCULATE THE MND

1.1 Introduction of 20,000 US tons of "Sealed" Concrete Vaults and Addition of Approximately 106,600 US Tons of Non-Native Undefined Soil

The Crescent Gardens Cemetery Project underwent substantial modifications after circulation of the Draft IS-MND (dated July 25, 2025). The Final IS-MND (dated November 7, 2025, and released to the public on March 5, 2026) **(Exhibit A)** introduced significant changes not analyzed in the Draft.

- **1.1.1 Addition of "Sealed" Concrete Vaults**
  The original proposal contemplated direct soil interment or open-bottom vaults. The Final IS-MND, however, relies on the placement of 20,000 bodies in purportedly "watertight" and "completely sealed" Wilbert Monticello-style concrete vaults as shown in the Final IS-MND, Figure 8b-1, p. 31; **(Exhibit B-1)**. According to the manufacturer's specifications, each Wilbert Monticello vault weighs approximately 2,000 pounds **(Exhibit B-2).**

Total Weight of the Concrete Vaults:

- Each vault weighs 2,000 pounds.
- 20,000 vaults × 2,000 pounds = 40,000,000 pounds.
- 1 U.S. ton = 2,000 pounds.
- Therefore, 40,000,000 pounds ÷ 2,000 = **20,000 U.S. tons**.

This change was introduced in direct response to public and trustee agency comments, including those from the Elsinore Valley Municipal Water District (EVMWD); **(Exhibit C)**, which raised serious concerns regarding necroleachate migration and potential groundwater contamination impacting EVMWD wells and Canyon Lake.

- **1.1.2 Addition of Approximately 104,000 Cubic Yards (≈106,600 US Tons) of Non-Native Undefined Soils**
  The Final IS-MND **(Exhibit A, p. 2)** added 104,000 cubic yards non-native soils of unknown composition and density at or above existing grade. This addition was purportedly necessitated by the site's hard bedrock formation and the potential presence of Native American burial sites.

Total Weight of the Undefined Imported Soil:
According to standard conversion tables from the U.S. Environmental Protection Agency (EPA) and National Truck Equipment Association (NTEA):

- Loose topsoil weighs approximately 2,050 pounds per cubic yard (1.025 U.S. tons per cubic yard).

- Therefore, 104,000 cubic yards × 1.025 tons per cubic yard ≈ **106,600 U.S. tons**.

1.2 Substantial Change Triggering Recirculation Requirement

These two major modifications constitute a substantial change to the project. They trigger the legal requirement under the California Environmental Quality Act (CEQA) for recirculation of the Mitigated Negative Declaration (MND) and preparation of a more comprehensive environmental investigation, including fresh analysis of geological, hydrogeological, seismic, liquefaction, and contaminant fate-and-transport conditions.

- **1.2.1 Fundamentally Alters Site Surface and Subsurface Conditions**
  The additions can introduce new or substantially increased risks to hydrology, water quality, seismic stability, liquefaction, and geologic integrity. The Final IS-MND (revised November 7, 2025) did not analyze these impacts and cannot credibly address them without relevant, site-specific evaluation.

- **1.2.2 CEQA Expressly Requires Recirculation**
  CEQA Guidelines § 15073.5 mandates recirculation of a Mitigated Negative Declaration when substantial revisions occur after public notice, including when:

  - A new avoidable significant effect is identified that requires additional mitigation or project changes *(CEQA Guidelines § 15073.5(a)–(b))*; or
  - Significant new information shows a substantial increase in the severity of a previously identified impact *(CEQA Guidelines § 15073.5(b)*; *Public Resources Code § 21091).*

- **1.2.3 Major Project Modifications Demand Recirculation**
  Modifications that alter the basis for concluding that all impacts are less than significant require recirculation to ensure meaningful public participation and informed agency review (see *Mountain Lion Coalition v. Fish & Game Com.* (1989) 214 Cal.App.3d 1043, 1050–1051; *Laurel Heights Improvement Assn. v. Regents of University of California* (1988) 47 Cal.3d 376, 393–394 [“Laurel Heights I”], emphasizing that CEQA prohibits premature commitment and requires full disclosure of project changes before approval).

The addition of 20,000 concrete vaults (≈20,000 U.S. tons) and 104,000 cubic yards of non-native soil (≈106,600 U.S. tons), for a combined total of approximately **126,600 U.S. tons** of additional mass, constitutes substantial new information. This revision introduces significant unanalyzed risks, including:

- Structural vulnerability of subsurface vaults, utilities, and above-ground structures to seismic forces;
- Differential settlement of soils and potential vault cracking under liquefaction-induced loads;
- Accelerated contaminant transport from necroleachate in a site with shallow, poorly defined perched groundwater (3–20 feet below ground surface).

These changes significantly alter the site's hydrogeology and increase liquefaction susceptibility in ways the Final IS-MND did not evaluate.

The site is located in a FEMA Zone AE flood designation **(Exhibit D)** and lies approximately 4.8 miles from the Elsinore Fault **(Exhibit E).** The Draft IS-MND identified geologic and seismic impacts, including strong ground shaking and liquefaction in alluvial soils with perched groundwater at 13–15 feet bgs, as "potentially significant."

The geotechnical reports relied upon by Riverside County are inadequate to reduce these impacts to less-than-significant levels for a 20,000-plot cemetery that now includes over 106,600 tons of undefined non-native soil fill, 20,000 tons of concrete burial vaults, a mortuary, chapel, and caretaker residence. USGS shake maps, ground-motion prediction equations for strike-slip faults, and the 2023 National Seismic Hazard Model, combined with UCERF3 time-dependent forecasts for M5.0–M6.0+ events on the Elsinore Fault system,indicate moderate to high liquefaction risk **(Exhibits F 1-3).**

These effects were never adequately evaluated using the limited shallow geotechnical data from the Phase 1 Environmental Site Assessment (ESA), which relied on Leighton test pits excavated only 1.5–7.5 feet below ground surface (Appendix F-4, pp. 1–2; Appendix D-1, p. 18; Appendix F-3, pp. 1–2).

Conclusion: CEQA mandates recirculation of a Mitigated Negative Declaration whenever substantial revisions occur after public notice. This obligation is triggered by (1) identification of a new avoidable significant environmental effect requiring additional mitigation or project changes *(CEQA Guidelines § 15073.5(a)–(b)),* or (2) significant new information showing a substantial increase in the severity of a previously identified impact *(CEQA Guidelines § 15073.5(b); Pub. Resources Code § 21091).*

Major project modifications that fundamentally alter the basis for concluding that impacts are less than significant must receive fresh public scrutiny to guarantee meaningful participation and an informed agency decision on a complete record *(Mountain Lion Coalition, supra, 214 Cal.App.3d at 1050–1051; Laurel Heights I, supra, 47 Cal.3d at 393–394)*.

Recommendation: While recirculation of the Mitigated Negative Declaration is the minimum legal requirement under CEQA, the scale of these project revisions and the emergence of new or significantly more severe environmental impacts indicate that the project likely no longer qualifies for an MND. The primary recommendation is therefore to prepare and circulate a full **Environmental Impact Report (EIR)** to ensure complete CEQA compliance and build a robust, defensible record.

The Lead Agency should consider denying the Conditional Use Permit (CUP) if the revised project cannot satisfy the necessary findings. This approach would avoid further compliance burdens and minimize litigation risk.

2.0 FAIR ARGUMENT STANDARD – SUBSTANTIAL EVIDENCE OF SIGNIFICANT, UNMITIGABLE IMPACTS

CEQA prohibits adoption of a mitigated negative declaration (MND) where substantial evidence in the record supports a fair argument that the project may have a significant effect on the environment *(CEQA Guidelines § 15064(f); Public Resources Code § 21080)*. The fair argument standard is intentionally low: if competent, credible evidence, even if contradicted, suggests a significant impact, a full Environmental Investigation Report is required *(No Oil, Inc. v. City of Los Angeles (1974) 13 Cal.3d 68, 84–85; Friends of B Street v. City of Hayward (1980) 106 Cal.App.3d 988, 1002; Laurel Heights Improvement Assn. v. Regents of University of California (1988) 47 Cal.3d 376, 393)* Reasonable doubts must be resolved in favor of the evidence supporting a fair argument.

The Fair Agrument Standard in CEQA includes substantial evidence, defined as facts, reasonable assumptions based on facts, and expert opinions supported by facts *(CEQA Guidelines § 15384; Berkeley Hillside Preservation v. City of Berkeley (2015) 60 Cal.4th 1086, 1102)* establishes a fair argument of significant, unmitigable impacts in multiple resource areas:

Key Fair Arguments:

2.1 Continued Reliance on Limited Shallow Groundwater and Geotechnical Data

2.1.1 Limited Shallow Geotechnical Data: The MMCC and County's continued reliance on limited shallow geotechnical data from the Leighton test pits, excavated only to depths of 1.5 to 7.5 bgs due to "refusal on hard bedrock" and the lack of adequate groundwater wells and testing, provides no substantial evidence supporting the revised mitigation claims in the Final IS-MND. In fact, the admitted lack of deeper subsurface data and groundwater testing is precisely why a full Environmental Impact Report (EIR) is required under CEQA.

- **No Updated Testing:** No updated permeability testing, long-term durability analysis, analytical testing of groundwater, site-specific contaminant fate and transport modeling (e.g., USGS MODFLOW 6.7.0/MT3DMS), or seismic/liquefaction analysis has been performed. This failure violates CEQA's core requirement of a good-faith, full-disclosure effort *(Pub. Resources Code § 21080.5).* The absence of recirculation renders the MND process legally invalid.
- **Incomplete Test Data:** The proposed Final Initial Study/Mitigated Negative Declaration (IS-MND) fails to comply with *CEQA Guidelines §§ 15064 and 15151*, which require that an IS-MND be supported by substantial evidence from a thorough, reliable investigation. Limiting geotechnical test pits to a maximum depth of only 1.5–7.5 feet bgs is grossly inadequate for evaluating the proposed cemetery project. The project contemplates deep burial vaults extending typically 6–8 feet or more below grade, along with substantial volumes of imported soil that would raise existing grades by as much as 5 to 14 feet, which is a substantial change under CEQA.

Located approximately one mile from Canyon Lake, a critical drinking water source designated as impaired and subject to Total Maximum Daily Load (TMDL) requirements under *Section 303(d) of the Clean Water Act (33 U.S.C. § 1313(d)) and California Water Code §§ 13240–13247*, this fundamental deficiency in subsurface investigation fails to adequately evaluate potential impacts to groundwater and surface water quality.

- **Inadequate Assessment of Contaminant Migration Risks:** *California Water Code § 13260 et seq. and Riverside County Code § 8.120* require adequate subsurface data to assess contaminant migration risks from human remains and necroleachate. Perched groundwater has been documented on the Crescent Garden Cemetery project site at shallow depths ranging from 3–20 feet bgs directly beneath the proposed burial areas and undefined soil fill zones across the 46.4-acre development footprint. Combined with fracture flow in the granitic/metamorphic bedrock present at the site, the addition of up to 15 feet of undefined soils in raised beds containing concrete vaults (as suggested in the Final IS-MND) represents a major significant change. This raises serious unresolved questions from a hydrogeologic, seismic, liquefaction, and flood zone perspective regarding impact pathways to the San Jacinto River watershed and Canyon Lake.
- **Legal Precedent:** California courts have repeatedly held that incomplete or superficial studies cannot constitute substantial evidence supporting a “less than significant” impact finding. (*Friends of the Eel River v. North Coast Railroad Authority* (2017) 3 Cal.5th 677, 713; *Laurel Heights Improvement Assn. v. Regents of the University of California* (1988) 47 Cal.3d 376, 393.) The limited-depth test pits are themselves substantial evidence that the geotechnical and hydrogeologic analysis is grossly inadequate.

Conclusion and Recommendation: Consequently, the IS-MND fails to comply with CEQA. The absence of recirculation renders the entire MND process legally invalid, and approval of the project on this deficient record would constitute an abuse of discretion and a clear violation of state and local law.

Riverside County Planning Commission, Board of Supervisors, or other decision-making body must immediately deny approval of the Final IS-MND and the proposed cemetery project in its entirety. Because the current record contains no substantial evidence that potentially significant impacts to groundwater quality, surface water quality, seismic stability, liquefaction, and flood hazards have been mitigated to a less-than-significant level, CEQA requires preparation of a full Environmental Impact Report (EIR) before any further discretionary action may be taken *(Pub. Resources Code § 21082.2; CEQA Guidelines § 15064).*

In the absence of such an EIR, any approval would be subject to immediate legal challenge and set-aside by the courts. To protect the public interest, the San Jacinto River watershed, Canyon Lake as a vital drinking-water source, and compliance with *CEQA, the California Water Code, the Clean Water Act, and Riverside County Code § 8.120*, the cemetery project must be halted until the lead agency conducts the comprehensive, site-specific, and scientifically rigorous investigation that the law demands. No further reliance on the deficient shallow test-pit data can lawfully support project approval.

2.2 Necroleachate and Groundwater Contamination

The 2019 peer-reviewed study by Kandolia et al. (Desalination and Water Treatment, Vol. 168, pp. 235–242) **(Exhibit G)** provides statistically significant evidence ($p < 0.05$) that Islamic-style burials (direct interment without coffins) contaminate aquifers. Measured impacts include elevated pH, electrical conductivity, total dissolved solids (TDS), Na^+, Cl^-, PO_4^{3-}, F^-, Pb, and heterotrophic bacteria, with contaminant plumes migrating to depths of 85–110 meters. This evidence is directly applicable to the proposed uncasketed burials inside concrete vaults at the Crescent Garden Cemetery Project. The Final IS-MND contains no analysis, rebuttal, or site-specific modeling of these risks, violating CEQA and requiring preparation of a full Environmental Impact Report (EIR) *(CEQA Guidelines § 15064(g); Pub. Resources Code § 21080(c)).*

- **2.2.1 Lack of Hydrogeological Modeling**
  Substantial evidence supports a fair argument that the project may cause significant, unmitigable impacts to hydrology and water quality. This low-threshold standard mandates preparation of an EIR *(Pub. Resources Code § 21080(c); CEQA Guidelines § 15064(f)(1)).* Credible evidence triggers full review even if contradicted, with doubts resolved in favor of environmental protection *(No Oil, Inc. v. City of Los Angeles (1974) 13 Cal.3d 68, 84–85; Friends of the Sierra Madre v. City of Sierra Madre (2001) 25 Cal.4th 165, 185–186; Berkeley Hillside Preservation v. City of Berkeley (2015) 60 Cal.4th 1086, 1102).*

Key areas of concern include:

- **Hydrology and Water Quality**: Peer-reviewed data demonstrate measurable groundwater contamination from similar burial practices, including elevated pH, TDS, nutrients, heavy metals (e.g., Pb), and bacteria, with plumes migrating to significant depths (Kandolia et al., 2019) **(Exhibit G).**
- **Absence of Required Fate and Transport Modeling**: The Final IS-MND assumes vault water tightness without any site-specific contaminant transport modeling. Industry-standard tools such as USGS MODFLOW 6.7.0 coupled with MT3DMS or MT3D-USGS are routinely required under CEQA for projects with potential contaminant releases into aquifers *(CEQA Guidelines, Appendix G, § IX – Hydrology and Water Quality).* These models simulate advection, mechanical dispersion, molecular diffusion, sorption, decay, multi-species reactions, and complex boundary conditions to predict plume migration and breakthrough curves at receptors (e.g., drinking water wells or surface water bodies).
- **Site-Specific Modeling Example (Exhibit H)**: A MODFLOW 6.7.0/MT3DMS analysis prepared by G. Protocol LLC, using data from the Crescent Garden Cemetery Project Phase 1 ESA and appendices, provides the following key analog-based projections under credible seismic and flood scenarios (M5.2 earthquake with daily microseismic activity combined with the 40 million-pound vault load, plus 100-year flood events):
  - Vadose zone breakthrough to perched lens: 3–6 days.

- Saturated zone pore velocity: baseline 0.3–0.5 ft/day; enhanced to 0.45–0.6 ft/day by necro-dissolved organic carbon (DOC).
- Travel time to Canyon Lake intake: <5–15 years (significantly faster via fracture and perched bypass pathways).
- Plume exceedances: nitrate >10 mg/L as N (Title 22 MCL), pathogens, lead; potential PFAS mobilization that could collapse EVMWD blending margins (raw PFOS maximum ~9.2 ppt).
- Mass flux to surface water: episodic pulses during flood events could violate Canyon Lake TMDL limits.
- Conclusions: A 100-year flood would likely result in toxic slurry discharge to Perris Drain.

These projections align with peer-reviewed cemetery contamination studies (Kandolia et al., 2019: statistically significant elevations in pH, EC, TDS, Na^+, Cl^-, PO_4^{3-}, Pb, and heterotrophic bacteria) and analogous MODFLOW/MT3DMS leachate simulations from landfill research.

- **Critical Relevance to the Project**: The proposal includes approximately 20,000 “watertight” burial vaults, associated structures, utilities, septic systems (totaling ~20,000 US tons), and ~106,600 US tons of imported undefined soil fill to construct raised burial mounds. The site is underlain by heterogeneous geology (Qoa old alluvial-channel deposits, Mzp Phyllite, and Kgt Gavilan Ring Complex tonalite), with shallow perched groundwater at 3–20 feet, FEMA Zone AE flood designation, and location within a moderate liquefaction zone near the Elsinore Fault.

In the event of seismic-induced liquefaction, differential settlement, vault rupture, or mound slope failure, exacerbated by daily microseismic activity, necroleachate containing pathogens, heavy metals, nitrates, ammonia, and other decomposition byproducts could rapidly enter the shallow aquifer. A proper site-specific MT3D-USGS (coupled with MODFLOW 6.7.0 or equivalent) simulation is essential to:

- Quantify advective and dispersive transport under site-specific flow gradients.
- Evaluate long-term plume migration and impacts to downgradient receptors (including Canyon Lake).
- Assess interference with groundwater recharge and the effectiveness of any proposed mitigation.

- **2.2.2 Lack of Testing and Risk Assessment**
  The Final IS-MND contains no permeability testing, analysis of risks from shallow perched groundwater (3–20 feet), FEMA Zone AE flooding, or seismic events. This omission violates CEQA’s requirement for good-faith, science-based analysis *(Pub. Resources Code § 21080.5; CEQA Guidelines § 15151).*

- **No Site-Specific Solute Transport Modeling**: The document lacks any site-specific solute transport modeling, violating CEQA's mandates for adequate analysis of hydrology and water quality impacts *(Pub. Resources Code § 21080.5; CEQA Guidelines §§ 15126.2, 15151, and Appendix G, § IX(a), (b), (f)).* It also fails to provide substantial evidence that impacts will be reduced to less-than-significant levels *(CEQA Guidelines § 15064(f); No Oil, Inc. v. City of Los Angeles (1974) 13 Cal.3d 68).*
- **Required Modeling**: The lead agency must require a full, peer-reviewed MT3D-USGS (coupled with MODFLOW 6.7.0 or MODFLOW-NWT) groundwater flow and multi-species transport model. This analysis must account for the addition of 20,000 US tons of concrete vaults and ~106,600 US tons of imported soil fill, the site's complex geology, shallow perched groundwater, massive fill loading for burial mounds, seismic hazards (including liquefaction and daily microseismic effects), and potential necroleachate sources. Failure to do so renders the environmental documentation legally inadequate ***(Laurel Heights Improvement Assn. v. Regents of University of California (1988) 47 Cal.3d 376, 393).***

Conclusion: Substantial credible evidence establishes a fair argument that the Crescent Garden Cemetery Project will cause significant, unmitigable impacts to hydrology and water quality. The Final IS-MND is legally deficient because it omits required site-specific MODFLOW 6.7.0/MT3D-USGS fate-and-transport modeling for necroleachate migration from 20,000 vaults, massive imported fill, shallow perched groundwater, FEMA Zone AE flooding, and San Jacinto Fault seismic hazards. These deficiencies violate CEQA's core requirements for rigorous, science-based analysis *(CEQA Guidelines §§ 15126.2, 15151, Appendix G § IX; Laurel Heights, supra).*

Recommendation: The lead agency must immediately set aside the inadequate IS-MND and direct preparation of a comprehensive EIR that includes the required peer-reviewed groundwater transport model. Given the demonstrated unmitigable risks to local aquifers and Canyon Lake, the Project should be denied in its entirety to protect public health and water resources.

2.3 Geotechnical/Seismic Risks/Liquefaction Risks:

2.3.1 Introduction of Non-Native Undefined Soil Composition and Massive Surcharge Loading

The Final IS-MND (revised November 7, 2025) proposes the following modifications:

- **Significant Modifications – Vaults and Imported Soil**: Importing approximately 104,000 cubic yards (approximately 106,600 US tons) of soil of undefined composition and classification, along with the installation of 20,000 US tons of concrete vaults to the site for a total added surcharge of approximately 126,600 US tons.
- **Geologic Setting**: This massive surcharge of imported soil and concrete vaults is proposed to be placed at or above existing grade on a site underlain by heterogeneous geologic units consisting of Qoa (Old Alluvial-Channel Deposits), Mzp (Phyllite), and Kgt (Gavilan Ring Complex tonalite). These units directly control the site's hydrogeologic and seismic behavior and are formally defined and mapped in the Preliminary Geologic Map of the Elsinore 7.5′ Quadrangle

(U.S. Geological Survey Open-File Report 2003-0281) and related digital geologic mapping of the Santa Ana 30′ × 60′ Quadrangle **(Exhibit I, 1-2).**

- **Heterogeneous Geologic Contact**: The project site is underlain by a heterogeneous contact zone in which the compressible, water-bearing Qoa overlies the more rigid Mzp and Kgt bedrock. This setting creates a classic "perched aquifer" condition within the Qoa, with fracture-flow pathways in the underlying bedrock units that connect directly to the San Jacinto River watershed and Canyon Lake, located approximately one mile downgradient.

The precise characteristics of these units are as follows:

- **Qoa (Old Alluvial-Channel Deposits)**: Quaternary-age (Pleistocene) alluvial-channel deposits consisting of loose to medium-dense sands, silts, gravels, and clays deposited in ancient stream channels. These deposits are highly permeable and compressible when saturated. They host the shallow perched groundwater documented on the site at depths of 3–20 feet below ground surface (Phase 1 Environmental Site Assessment, Appendix D-1, p. 18; Appendix F-3, pp. 1–2; Appendix F-4, pp. 1–2).
- **Mzp (Phyllite)**: Mesozoic-age metamorphic rock, a fine-grained, foliated schistose rock formed under regional metamorphism. It is relatively impermeable except along fractures and joints, which serve as preferential pathways for groundwater flow and contaminant migration.
- **Kgt (Gavilan Ring Complex, Massive Textured Tonalite)**: Cretaceous-age intrusive igneous rock (tonalite) belonging to the Gavilan ring complex. It is a hard, competent granitic rock with low primary permeability but significant secondary permeability through fractures and faults.

2.3.2 Consolidation Settlement, Groundwater Displacement, and Liquefaction Risks

- **In the Qoa unit:** characterized by loose to medium-dense alluvial sands, silts, and gravels with shallow perched groundwater at depths of only 3–20 feet below ground surface, the addition of approximately 126,600 US tons of overburden will induce both immediate and long-term consolidation settlement. Saturated or compressible layers within the Qoa will experience pore-water expulsion, displacing groundwater upward and laterally. This displacement will raise the local perched water table, shift hydraulic gradients, interfere with natural recharge, and potentially cause mounding or perched-water rise in downgradient areas.

- **The Mzp and Kgt bedrock units:** which transmit pressure and flow primarily through fractures, will propagate these altered hydraulic pressures, accelerating contaminant migration pathways toward the San Jacinto River watershed and Canyon Lake.
- **Liquefaction and Seismic Impacts**: The added loading will significantly exacerbate liquefaction hazards in the moderate-liquefaction zone already identified for the site. Under *CEQA Guidelines, Appendix G, Section VI (Geology and Soils, items a.iii and c)*, the increased confining pressure on saturated Qoa soils will elevate excess pore pressures during seismic shaking or daily microseismic events along the nearby Elsinore Fault Zone. This will reduce effective stress, triggering bearing-capacity failure, lateral spreading, differential settlement, and buoyant uplift or rupture of the proposed vaults. The heterogeneous contact between the

compressible Qoa and the rigid Mzp/Kgt bedrock will create pronounced differential settlement zones, likely cracking the vaults and releasing necroleachate directly into the raised perched groundwater.

Major Modifications Impact: Placing 126,600 US tons of vaults and imported soil on this complex geologic setting will induce consolidation settlement in the Qoa unit, expel pore water, raise the perched water table, alter hydraulic gradients, and substantially increase liquefaction susceptibility during seismic events or microseismic activity along the San Jacinto Fault Zone *(CEQA Guidelines, Appendix G, Sections VI and IX).*

Conclusion: The Final IS-MND is legally defective under CEQA because it fails to analyze the combined risks arising from the site's complex heterogeneous geology, the massive unanalyzed surcharge loading from imported soil and concrete vaults, and the presence of shallow perched groundwater. Without required geotechnical testing, settlement modeling, liquefaction analysis, or supporting evidence, the document cannot lawfully conclude that these impacts are less than significant. California Supreme Court precedent requires full environmental analysis and recirculation where significant new or unanalyzed information is involved (see *Friends of the Eel River v. North Coast Railroad Authority* (2017) 3 Cal.5th 677, 712–713; *Laurel Heights Improvement Assn. v. Regents of University of California* (1988) 47 Cal.3d 376, 391–393).

Requirement: The existing Mitigated Negative Declaration is therefore invalid as a matter of law. The lead agency must cease all project approvals until a full Environmental Impact Report (EIR) is prepared that adequately addresses these mandatory geotechnical and seismic issues. Without full CEQA compliance, the project cannot lawfully proceed and must be halted to protect public health, safety, and the environment.

2.4 Potential Vault Physical and Chemical Impact on Groundwater

- **2.4.1 Concrete Burial Vault and Soil Import Weight Loading** The cumulative weight of approximately 20,000 US tons of concrete burial vaults combined with the importation of 106,600 US tons of non-native, undefined soil creates a substantial, inadequately analyzed risk of groundwater displacement through soil consolidation and increased loading. This impact has not been adequately evaluated under the *California Environmental Quality Act (CEQA, Public Resources Code § 21000 et seq.).* CEQA requires detailed analysis of potential hydrology and water quality effects, including interference with groundwater recharge, depletion of groundwater supplies, or alterations to aquifer characteristics *(CEQA Guidelines, Appendix G, Section IX(b)–(e)).*
- **Consolidation Settlement of Underlying Soils** In a large-scale cemetery development, the placement of hundreds to thousands of heavy concrete vaults can induce significant consolidation settlement in saturated or compressible soils (such as silts and clays). This process expels pore water, displaces groundwater, and can alter hydraulic gradients, perched water tables, and natural recharge patterns, particularly on sites with high groundwater tables or soft

underlying soils. No credible, site-specific geotechnical studies or established industry standards demonstrate that these impacts would be negligible.

- **Downward Consolidation Effects on Aquifers** While the project vaults are designed to resist buoyant uplift and lateral soil pressures in accordance with ASTM precast concrete standards, the assessments completely fail to address the downward consolidation forces imposed on underlying aquifers. Project documents focus narrowly on necroleachate migration while ignoring these fundamental loading-related hydrological impacts.
- **Critical Deficiencies in Project Documents** The environmental analysis is deficient in the following key areas:
    - No permeability testing of the vault concrete in relation to actual necroleachate chemistry, which increases the risk of accelerated concrete degradation and failure.
    - No long-term durability analysis accounting for repeated wetting/drying cycles, chemical attack from soil or groundwater, or seismic loading conditions.
    - No monitoring plan or numerical modeling to validate long-term containment performance under flood, perched water, or seismic scenarios.
- **Conclusions** These unsubstantiated assertions of no impact violate CEQA's requirement for substantial evidence *(Public Resources Code § 21080.5; CEQA Guidelines § 15064).*
- **Recommendations** The lead agency must prepare a full Environmental Impact Report (EIR) or properly supported Mitigated Negative Declaration (MND) that includes:
    - Site-specific geotechnical consolidation analysis;
    - Numerical modeling of hydraulic displacement and altered groundwater flow;
    - Evaluation of impacts on groundwater recharge, aquifer integrity, and nearby wells. *(See CEQA Guidelines, Appendix G, Geology/Soils and Hydrology/Water Quality sections.)*

2.5 Inadequate Environmental Justice Assessment

- **CalEnviroScreen and Disadvantaged Community Status**: The project is located in the Meadowbrook/Good Hope area, identified as an Environmental Justice community in Riverside County planning documents **(Exhibit J1-3)**. These rural, low-income communities already experience disproportionate environmental burdens, have limited resources, and rely heavily on local wells and surface water sources, including Canyon Lake and supplies from the Elsinore Valley Municipal Water District (EVMWD).
- **CEQA Requirements for Environmental Justice Analysis**: CEQA mandates a thorough evaluation of whether a project would exacerbate existing environmental disparities or create new disproportionate impacts on disadvantaged communities *(Public Resources Code § 21080; CEQA Guidelines § 15064; Government Code § 65040.12(e)(1)*; and CalEnviroScreen methodology).
- **Inadequacy of the IS-MND's Environmental Justice Analysis**: The Initial Study-Mitigated Negative Declaration (IS-MND) provides either no meaningful analysis or an inadequate one. The Environmental Justice (EJ) submittal prepared by MMCC **(Exhibit K-1)** merely lists inherent features of the proposed cemetery as purported "benefits" to the community, offering no genuine value-add or mitigation of project-specific impacts.

The applicant's EJ submittal consists mainly of conclusory statements, repeated "Policy Not Applicable" markings without justification or are clearly incorrect, and email exchanges demonstrate superficial claims of community benefits such as landscaping and a later-withdrawn bus shelter **(Exhibit K-2)**.

The EJ plan only offers superficial mitigation that fails to address seismic/liquefaction risk, construction dust, traffic, or long-term health effects on a site with perched groundwater at 13–15 feet. It Fails to evaluate cumulative impacts or consistency with the Elsinore Area Plan's policies protecting Meadowbrook's rural character; and provides no meaningful outreach documentation or evidence that community EJ concerns were resolved.

- **Widespread Community Opposition**: A Change.org petition has garnered over 4,000 signatures **(Exhibit L-1)**, with approximately 66% originating from directly impacted ZIP codes (92587 Canyon Lake, 92595 Lake Elsinore, and 92530 Wildomar) **(Exhibit L-2)**. Residents in these areas face direct exposure to potential risks and associated financial impacts. Public comments highlight unaddressed site-specific concerns, including leachate migration threatening Canyon Lake drinking water supplies, violations of Total Maximum Daily Load (TMDL) requirements, increased traffic, and flooding/seismic hazards. Notably, MMCC conducted no community outreach whatsoever.
- **Canyon Lake City Council Resolution (August 13, 2025)**: This resolution provides independent substantial evidence of significant environmental impacts **(Exhibit M)** *(see CEQA Guidelines § 15064(b)(3)).*
- **Adverse Impacts on Proximate Real Estate Values**: Peer-reviewed research demonstrates that cemetery proximity can negatively affect residential property values due to cultural, visual, and psychological externalities that reduce demand. A 2025 study, "Assessing the influence of cemetery proximity to rental values of residential properties in Calabar urban" by Rose Chinyere Okoro and Ekerette Thomas (International Journal of Housing Markets and Analysis, Emerald Publishing, DOI: 10.1108/IJHMA-07-2025-0152) **(Exhibit N)**, supports this finding through empirical analysis.
- **Failure to Mitigate Real Estate and Related Impacts**: The Final IS-MND fails to adequately analyze or mitigate the project's significant effects on aesthetics, hydrology/water quality, and land use compatibility, which directly contribute to diminished property values in the surrounding area *(Pub. Resources Code § 21001 et seq.).*
- **Conditional Use Permit Requirements**: Under *California Government Code § 65000 et seq. and Riverside County Ordinance No. 348,* conditional use permits must demonstrate that the proposed use is compatible with the surrounding area and will not substantially impair property values or community welfare. The applicant has failed to perform the required analyses to meet these standards.
- **Supporting Legal Precedent**: This approach is consistent with long-standing zoning principles protecting community character and property values *(Village of Euclid v. Ambler Realty Co. (1926) 272 U.S. 365)* and CEQA's requirement for full disclosure and analysis of significant

environmental effects *(Laurel Heights Improvement Assn. v. Regents of University of California (1988) 47 Cal.3d 376).*

Conclusion: the IS-MND fails to adequately assess or mitigate the significant Environmental Justice impacts on the Meadowbrook/Good Hope community, a recognized disadvantaged area *Gov. Code § 65040.12(e)(1)).* The document provides only superficial analysis, ignores widespread community opposition and the Canyon Lake City Council resolution as substantial evidence of impacts *(CEQA Guidelines § 15064(b)(3)),* and fails to address documented effects on property values and water quality. This inadequate review violates CEQA's mandates to evaluate disproportionate impacts in disadvantaged communities *(Pub. Resources Code § 21080; CEQA Guidelines § 15064)* and would exacerbate existing burdens on vulnerable residents without meaningful mitigation.

Recommendation: The Mitigated Negative Declaration should therefore be rejected and a full Environmental Impact Report (EIR) prepared. The EIR must include a comprehensive Environmental Justice analysis evaluating disproportionate impacts, leachate and water quality risks to Canyon Lake, effects on nearby property values, and proper community outreach, consistent with CEQA requirements *(Pub. Resources Code § 21001 et seq.; Gov. Code § 65040.12).* We recommend that the Riverside County Planning Commission and Board of Supervisors deny the Conditional Use Permit, which must demonstrate compatibility with surroundings and no substantial impairment of property values or community welfare *(Gov. Code § 65000 et seq.; Riverside County Ordinance No. 348),* and require a full EIR before further consideration of the project.

2.6 Applicant Incapacity

The applicant MMC. (EIN 95-4484132, a 501(c)(13) cemetary company), reports annual revenues consistently below $500,000, with the most recent IRS for 990 showing approximately $488,000 in revenue **(Exhibit O-1).** MMCC has no demonstrated experience owning or operating a large-scale, standalone cemetery of approximately 20,000 plots.

This lack of financial scale and operational expertise creates significant, unmitigable risks to the long-term viability, maintenance, and proper endowment care of the proposed project. These risks constitute a basis for finding potential significant environmental and public interest impacts under *CEQA Guidelines § 15064(b)* and raise serious concerns under the Cemetery Act *(Business and Professions Code §§ 9600 et seq.),* which establishes standards for cemetery operations, financial responsibility, and ongoing care obligations.

2.6.1 Non Profit Classification: The Muslim Mortuary and Cemetery Committee (MMCC, EIN 95-4484132) claims on its website to be a **501(c)(3)** religious nonprofit organization. **(Exhibit O-2)** However, the **IRS officially classifies it as a 501(c)(13) cemetery company** (tax-exempt since 1995). This discrepancy is not a minor technicality, it is a material misrepresentation with serious legal and credibility implications for the CUP application.

Why This Is a Problem

- **501(c)(3) vs. 501(c)(13)**: A 501(c)(3) is a public charity eligible for broad tax-deductible donations and wide-ranging charitable, religious, or educational activities. A 501(c)(13) is a narrow mutual or nonprofit cemetery company whose purpose is strictly limited to the disposal of human bodies by burial or cremation and the perpetual care of cemetery grounds. Donations to 501(c)(13) organizations are generally **not tax-deductible** (except in limited cases for perpetual care funds).
- **Misrepresentation to the Public and County**: By holding itself out as a 501(c)(3), MMCC creates the false impression that it is a broad charitable/religious organization deserving of special deference, tax-deductible contributions, and favorable treatment under CEQA and Riverside County land-use policies. This is false. The IRS Form 990 data (publicly available via ProPublica, GuideStar, and Charity Navigator) confirms the 501(c)(13) status.
- **Impact on the CUP Process**: The applicant repeatedly emphasizes its "non-profit" and "religious" character to argue community benefit and consistency with the Elsinore Area Plan and General Plan Environmental Justice policies. Misstating its IRS tax status undermines the credibility of the entire application, including the Environmental Justice checklist, the Draft IS-MND, and claims of public benefit. It also raises questions about whether the organization has accurately disclosed its structure, finances, and operational limitations to the County.
- **Broader CEQA and Land-Use Concerns**: This misrepresentation compounds the already deficient analysis in the IS-MND. The Draft Mitigated Negative Declaration fails to provide substantial evidence that geologic/seismic impacts (strong ground shaking and liquefaction on alluvial soils with perched groundwater at 13–15 feet) have been reduced to a less-than-significant level for a 20,000-plot cemetery with imported fill and burial vaults *(Pub. Resources Code §§ 21082.2, 21100, and CEQA Guidelines § 15064).*

Conclusion: The record demonstrates that the applicant, the Muslim Mortuary and Cemetery Committee (MMCC), lacks both the financial capacity and operational experience necessary to responsibly develop and perpetually maintain a 20,000-plot cemetery. These deficiencies create unmitigable risks that constitute significant impacts under *CEQA Guidelines § 15064(b)* and violate the standards of financial responsibility and operational competence required by the *Cemetery Act (Bus. & Prof. Code §§ 9600 et seq.).*

Compounding these deficiencies, the applicant has materially misrepresented its tax-exempt status by holding itself out as a 501(c)(3) charitable organization on its website while the IRS officially classifies it as a 501(c)(13) cemetery company. Because the Initial Study-Mitigated Negative Declaration remains legally inadequate in its analysis of seismic, geologic, and Environmental Justice impacts, Riverside County is required by law to prepare a full Environmental Impact Report. Any approval on the current record would violate *CEQA (Pub. Resources Code §§ 21082.2, 21100,* and *CEQA Guidelines § 15064)* and would be subject to immediate legal invalidation. The Conditional Use Permit must therefore be denied.

Recommendation: The Conditional Use Permit for the Crescent Gardens Cemetery (CUP230002) should be denied outright. The applicant has failed to carry its burden of demonstrating that the proposed 20,000-plot cemetery can be developed and perpetually maintained without creating significant, unmitigable environmental and public welfare impacts. Denial is required to protect the integrity of the CEQA process, the rural character of Meadowbrook protected by the Elsinore Area Plan, and the health, safety, and property values of surrounding residents.

2.7 Public Opposition:

- **Community Opposition**: Residents from Meadowbrook, Canyon Lake, and surrounding areas launched a Change.org petition titled "Absolute opposition to proposed Crescent Gardens Cemetery near Canyon Lake drinking water." The petition demands immediate rejection of the project, citing serious concerns over drinking water safety. **(Exhibit L-1&2)**
- **Canyon Lake City Council**: The City Council unanimously adopted a resolution opposing the project. The resolution references resident complaints regarding increased traffic and warnings from the Elsinore Valley Municipal Water District about potential risks to groundwater and surface water quality. **(Exhibit M)**
- **Media Coverage**: Local and regional news outlets have amplified resident concerns. Coverage by ABC7 Los Angeles (August 13, 2025) and The Press-Enterprise (August 15, 2025) highlights alarms over the project's scale, including graves potentially bordering private properties, perceived threats to the water table despite county assurances, and the visual transformation of rural landscapes into a cemetery setting. **(Exhibit P-1&2)**

  Local and regional news outlets have amplified legitimate resident concerns regarding Conditional Use Permit No. 230002 (Crescent Gardens Cemetery).

  August 13, 2025, **ABC7 Los Angeles** aired a detailed report titled "Proposed cemetery stirs unrest, raises concerns in Meadowbrook, Riverside County." The segment highlighted alarms over the project's massive scale, an 85-acre site with 20,000 burial plots, including graves potentially bordering private properties, perceived threats to the local water table (despite county assurances), and the irreversible visual transformation of rural Meadowbrook landscapes into a cemetery setting. Resident Blake Ruff of Ruff Ranch expressed direct concerns about potential impacts to his farm's water supply from the proposed Muslim burial practices.

  August 15, 2025, **The Press-Enterprise** published "New cemetery planned for rural Riverside County alarms neighbors," which further detailed resident opposition. The article emphasized the project's unprecedented size for the Muslim Mortuary and Cemetery Committee (MMCC), its location overlooking Canyon Lake, risks to groundwater, traffic impacts, and the loss of rural character in the unincorporated Meadowbrook community. It noted the Canyon Lake City Council's unanimous resolution opposing the project over water and traffic concerns.

- **Conclusions:** Strong public opposition exists to the Crescent Gardens Cemetery project due to concerns over drinking water safety, traffic, and changes to the rural character. The Canyon Lake City Council unanimously opposed the project, supported by a Change.org petition and regional media coverage.
- **Recommendations:** Prepare a full Environmental Impact Report (EIR) focusing on water resources and traffic. Conduct additional public outreach with residents and the City Council. Consider alternative sites away from sensitive water sources and residential areas.

3.0 Recommended Actions:

1. **Minimum Requirement**: Immediately set aside the deficient Final IS-MND and recirculate a revised version that properly addresses the substantial changes *(per CEQA Guidelines § 15073.5).*
2. **Preferred Approach**: Issue a Notice of Preparation for a full Environmental Impact Report (EIR). This should include:
    - Peer-reviewed science
    - Site-specific MODFLOW/MT3DMS contaminant transport modeling
    - Updated geotechnical, seismic, and liquefaction analysis (including surcharge effects)
    - Comprehensive environmental justice evaluation
    - Robust public outreach
3. **Alternative/Parallel Option**: Deny the Conditional Use Permit under the county's police powers and local ordinances. The current record does not support the required findings that the project is compatible, will not substantially impair property values or community welfare, and does not have adequate mitigation.

    - Proceeding with the current inadequate IS-MND risks successful litigation, project invalidation, and potentially massive remediation costs (hundreds of millions of dollars) under Porter-Cologne, CERCLA, or similar laws.
    - Denial or requiring a full EIR would create a stronger, more defensible administrative record, ensure informed decision-making, and prevent irreversible harm to groundwater-dependent communities.
    - The recommendations are based on the project record, CEQA law and precedent, peer-reviewed studies, agency comments, and public evidence.

The analysis urges prompt action to uphold CEQA's goals of full disclosure and environmental protection while respecting lawful land-use authority.

4.0 Summary of All Cited Violations of Law – Crescent Gardens Cemetery Project (CUP230002)

To: Riverside County Transportation and Land Management Agency (TLMA) Planning Department, Planning Commission, Board of Supervisors, and All Responsible and Trustee Agencies
From: Stella May
Date: April 2, 2026
Re: Fatal Deficiencies in the Mitigated Negative Declaration for Conditional Use Permit No. 230002

The following is a concise, exhaustive list of every violation of law cited in the Legal Appeal and Formal Objection. Each violation is stated clearly with its precise legal reference. These deficiencies render the Final IS-MND legally invalid and require the County to immediately withdraw the document, prepare a full Environmental Impact Report (EIR), and/or deny the Conditional Use Permit.

4.1 Violations of the California Environmental Quality Act (CEQA)

- **Failure to recirculate the Mitigated Negative Declaration after substantial project modifications** – CEQA Guidelines § 15073.5; Public Resources Code § 21091.
- **Adoption of an MND despite substantial evidence supporting a fair argument of potentially significant, unmitigable environmental impacts** – CEQA Guidelines § 15064(f); Public Resources Code § 21080.
- **Inadequate subsurface and geotechnical investigation** – CEQA Guidelines §§ 15064, 15151; Public Resources Code § 21080.5.
- **Failure to perform site-specific fate-and-transport modeling for necroleachate and groundwater contamination** – CEQA Guidelines Appendix G, § IX; Public Resources Code §§ 21080(c), 21080.5.
- **Failure to analyze geotechnical, seismic, liquefaction, and surcharge loading impacts** – CEQA Guidelines Appendix G, §§ VI, IX; Public Resources Code § 21080.
- **Inadequate environmental justice analysis and failure to address disproportionate impacts on disadvantaged communities** – Public Resources Code § 21080; CEQA Guidelines § 15064; Government Code § 65040.12.
- **Failure to provide good-faith, full-disclosure environmental review** – Public Resources Code § 21080.5; CEQA Guidelines § 15151.
- **Failure to prepare a full EIR where required** – Public Resources Code §§ 21082.2, 21100, 21082.
- **Reliance on incomplete or superficial studies that do not constitute substantial evidence** – Laurel Heights Improvement Assn. v. Regents (1988) 47 Cal.3d 376; Friends of the Eel River v. North Coast Railroad Authority (2017) 3 Cal.5th 677; No Oil, Inc. v. City of Los Angeles (1974) 13 Cal.3d 68.

4.2 Violations of Water Quality and Related Laws

- **Failure to adequately protect impaired drinking water sources and comply with Total Maximum Daily Load (TMDL) requirements** – Clean Water Act § 303(d) (33 U.S.C. §

1313(d)); California Water Code §§ 13240–13247, 13260 et seq. (Porter-Cologne Water Quality Control Act).

- **Inadequate assessment of contaminant migration risks to groundwater and surface water** – California Water Code § 13260 et seq.; Riverside County Code § 8.120.

4.3 Violations of Land Use and Zoning Laws

- **Failure to make required findings for Conditional Use Permit approval** – Government Code §§ 65800 et seq., 65000 et seq.; Riverside County Ordinance No. 348 (project compatibility, no substantial impairment of property values or community welfare, and adequate mitigation).
- **Violation of police powers to protect public health, safety, and welfare** – Government Code § 65800 et seq.

4.4 Violations Related to Cemetery Operations

- **Failure to demonstrate financial responsibility and operational competence for long-term maintenance and endowment care** – Business and Professions Code §§ 9600 et seq. (Cemetery Act); CEQA Guidelines § 15064(b).

4.5 Additional Violations

- **Material misrepresentation of tax-exempt status (501(c)(3) vs. 501(c)(13))** – Undermines credibility of the entire application and public benefit claims under CEQA and land-use review processes.
- **Failure to adequately address cumulative impacts, long-term maintenance risks, and consistency with applicable plans and policies** – Public Resources Code § 21001 et seq.; CEQA Guidelines § 15064.

Conclusion and Required Action

These violations of law are fatal to the Mitigated Negative Declaration. The record contains no substantial evidence that all impacts have been mitigated to a less-than-significant level. To comply with state law, protect the San Jacinto River watershed and Canyon Lake drinking water supplies, and avoid unnecessary litigation and liability, Riverside County must:

1. Immediately withdraw the deficient Final IS-MND.
2. Prepare and circulate a full Environmental Impact Report (EIR).
3. Deny the Conditional Use Permit (CUP230002) under its police powers and local ordinances.

Any approval on the current record would constitute an abuse of discretion and would be subject to immediate judicial invalidation. The Crescent Gardens Cemetery Project must be stopped to uphold the law and safeguard public health and vital water resources.

5.0 Glossary of Key Terms Crescent Gardens Cemetery Project (CUP230002) Prepared for Formal Appeal and Objection

Term	Definition
CEQA	California Environmental Quality Act (Public Resources Code § 21000 et seq. and CEQA Guidelines, 14 Cal. Code Regs. § 15000 et seq.) – the state law requiring environmental review of discretionary projects to disclose and mitigate significant impacts.
IS-MND	Initial Study/Mitigated Negative Declaration – the environmental document prepared by the lead agency concluding that, with mitigation, the project will have no significant environmental effects.
Draft IS-MND	The version of the Initial Study/Mitigated Negative Declaration circulated for public review from July 25 to August 28, 2025.
Final IS-MND	The revised version dated November 7, 2025, and publicly released March 5, 2026, which incorporated substantial project modifications without recirculation.
Substantial Project Modifications	Major post-circulation changes including the addition of 20,000 sealed concrete burial vaults and importation of approximately 104,000 cubic yards of non-native soil, totaling approximately 126,600 U.S. tons of added mass.
Wilbert Monticello-Style Concrete Vaults	Purportedly “watertight” and “completely sealed” single-reinforced concrete burial vaults, each weighing approximately 2,000 pounds, used for the 20,000 uncasketed natural burials.
Imported Soil Fill	Approximately 104,000 cubic yards (≈106,600 U.S. tons) of non-native, undefined soil placed at or above existing grade to accommodate bedrock and potential cultural resources.
Recirculation	The mandatory CEQA process of re-noticing and re-reviewing a substantially revised Negative Declaration or Mitigated Negative Declaration before adoption (CEQA Guidelines § 15073.5).
Fair Argument Standard	The low threshold under CEQA requiring preparation of a full Environmental Impact Report (EIR) whenever substantial evidence in the record supports a fair argument that the project may cause significant environmental effects (CEQA Guidelines § 15064(f); Public Resources Code § 21080).
Necroleachate	Contaminant-laden fluid generated from the decomposition of human remains, containing elevated pH, total dissolved solids (TDS), nutrients, heavy metals (e.g., Pb), bacteria, and other byproducts that can migrate into groundwater.
Perched Groundwater	Shallow groundwater lenses documented on the project site at depths of 3–20 feet below ground surface (bgs), separate from deeper aquifers and highly vulnerable to surface contamination.
FEMA Zone AE	A high-risk Special Flood Hazard Area with a 1% annual chance of flooding (100-year flood), where base flood elevations are determined and wave heights do not exceed three feet.
Elsinore Fault	Active strike-slip fault system located approximately 4.8 miles from the

Term	Definition
	project site, contributing to moderate to high seismic shaking and liquefaction risk.
Liquefaction	Seismic phenomenon in which saturated, loose soils (such as the site's Qoa alluvial deposits) lose strength and behave like a liquid during ground shaking, increasing risks of settlement, differential movement, and structural failure.
Surcharge Loading	The additional weight imposed on the site by the combined mass of 20,000 concrete vaults (≈20,000 U.S. tons) and imported soil fill (≈106,600 U.S. tons), potentially causing consolidation settlement and altered hydrology.
Fate-and-Transport Modeling	Scientific modeling (e.g., MODFLOW 6.7.0 coupled with MT3DMS) used to predict the migration of contaminants such as necroleachate through vadose and saturated zones under site-specific conditions.
Environmental Justice	The fair treatment and meaningful involvement of all people regardless of race, color, national origin, or income with respect to environmental laws; requires analysis of disproportionate impacts on disadvantaged communities (Government Code § 65040.12).
CalEnviroScreen	State screening tool used to identify disadvantaged communities burdened by multiple sources of pollution and population vulnerability, including the Meadowbrook/Good Hope area.
Disadvantaged Community	Areas identified by CalEnviroScreen or CalEPA as experiencing disproportionate environmental burdens, including the project's Meadowbrook/Good Hope location.
Conditional Use Permit (CUP)	Discretionary land-use approval under Riverside County Ordinance No. 348 and Government Code §§ 65000 et seq. requiring findings of compatibility, no substantial impairment of property values or community welfare, and adequate mitigation.
Cemetery Act	Business and Professions Code §§ 9600 et seq., establishing standards for cemetery operations, financial responsibility, perpetual care endowments, and long-term maintenance.
501(c)(13)	IRS tax-exempt classification for nonprofit cemetery companies limited to burial/cremation and perpetual care; donations generally not tax-deductible (distinct from the applicant's claimed 501(c)(3) status).
TMDL	Total Maximum Daily Load – regulatory limit under Clean Water Act § 303(d) for pollutants in impaired water bodies such as Canyon Lake.
Porter-Cologne Water Quality Control Act	California's primary water quality law (California Water Code § 13000 et seq.) governing protection of groundwater and surface water from contamination.